

THE UNIVERSAL HOUSE OF JUSTICE

1998-08-27

To an individual believer dear b aháí friend

reply to your letter . . . seeking clarification on the “interpretative function” of that institution. . . .

in the light of the Teachings which are well known to you, and given the repeated statements of the house of justice on this subject, it is not correct to insist that the house of justice has an interpretative function. This matter has been dealt with in three published letters, dated 9 march 1965, 27 may 1966 and 7 december 1969, appearing in Messages from the Universal House of Justice: 1963–1986 (u.S. bahá’í publishing Trust). A careful study of these letters can provide you with the answers you seek. however, the 282.1
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6house of justice is happy to offer some further comments for your consideration.

Any reference to authoritative or binding interpretation of bahá’í Scripture is a reference to the divinely guided meaning given to such Scripture by either ‘Abdu’l-b ahá or the guardian, the two persons authorized in the sacred Texts to interpret the Teachings. with regard to Shoghi effendi, your letter cites a passage from the 9 march 1965 letter of the house of justice which says: “The guardian reveals what the Scripture means; his interpretation is a statement of truth which cannot be varied. upon the universal house of justice, in the words of the guardian, ‘has been conferred the exclusive right of legislating on matters not expressly revealed in the bahá’í writings.’” in keeping with its legislative function the house of justice exercises the role of elucidation based on passages in the will and Testament of ‘Abdu’l-b ahá and statements in the writings of the guardian. for example, ‘Abdu’l-b ahá states:

it is incumbent upon these members (of the universal house of justice) to . . . deliberate upon all problems which have caused difference, questions that are obscure and matters that are not expressly recorded in the book . . . and bear upon daily transactions. . . .

(Will and Testament of ‘Abdu’l-Bahá (Wilmette: Bahá’í Publishing Trust, 1971), p. 20)

further, in response to a question raised by a National Spiritual Assembly about the universal court of Arbitration, the guardian, in a letter dated 9 April 1923, defined such explanation as being in the domain of the universal house of justice and anticipated its function of elucidation:

. . . regarding the nature and scope of the universal court of Arbitration, the master’s explicit instructions, all important fundamental questions must be referred. . . .

(published in Bahá’í Administration: Selected Messages 1922–1932

(Wilmette: Bahá’í Publishing Trust, 1971), p. 7)

The meanings of the terms “elucidation” and “interpretation,” as they are used with regard to the functions of Bahá’í institutions, should not of 283.3

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Messages from the Universal House of Justice

6course be confused with each other. The elucidations of the universal house of justice stem from its legislative function, and as such differ from interpretation. The divinely inspired legislation of the house of justice does not attempt to say what the revealed word means—it states what must be done in cases where the revealed Text or its authoritative interpretation is not explicit; and in this context it offers explanations. It is, therefore, on quite

is empowered to abrogate or amend its own legislation whenever it judges the conditions make this desirable. The major distinction between the two functions of elucidation and interpretation, to repeat the point differently,

is that legislation with its resultant outcome of elucidation is susceptible of amendment by the house of justice itself, whereas the guardian’s interpretation is a statement of truth which cannot be varied.

while the house of justice does not interpret, it makes deductions on the basis of the revealed Texts and their authorized interpretations. This is clearly indicated in the following statement of ‘Abdu’l-b ahá:

briefly, this is the wisdom of referring the laws of society to the house of justice. in the religion of islám, similarly, not every ordinance was explicitly revealed; nay not a tenth part of a tenth part was included in the Text; although all matters of major importance were specifically referred to, there were undoubtedly thousands of laws which were unspecified. These were devised by the divines of a later age accord-ing to the laws of islamic jurisprudence, and individual divines made conflicting deductions from the original revealed ordinances. All these were enforced. Today this process of deduction is the right of the body of the house of justice, and the deductions and conclusions of individual learned men have no authority, unless they are endorsed by the house of justice. The difference is precisely this, that from the conclusions and endorsements of the body of the house of justice whose members are elected by and known to the worldwide bahá’í community, no differences will arise; whereas the conclusions of in-dividual divines and scholars would definitely lead to differences, and result in schism, division, and dispersion. The oneness of the word would be destroyed, the unity of the faith would disappear, and the edifice of the f aith of g od would be shaken.

(wilmette: b ahá’í p ublishing T rust, 1996), p. 86)283.6

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65in the normal use of the term, interpretation is the natural activity of an intelligent mind. As has been stated on previous occasions in the communications of the house of justice, there is an important distinction made in the faith between authoritative interpretation, as described above, and the interpretation which every believer is fully entitled to voice. believers are free, indeed are encouraged, to study the writings for themselves and to express their understanding of them. Such personal interpretations can be most illuminating, but all bahá’ís, including the one expressing the view, however learned he may be, should realize that it is only a personal view and can never be upheld as a standard for others to accept, nor should conten-

tion ever be permitted to arise over differences in such opinions.

As to your reference to the perception of certain scholars that the opinions of the house of justice are neither binding nor authoritative, the following words of ‘Abdu’l-b ahá are illuminating:

let it not be imagined that the house of justice will take any decision according to its own concepts and opinions. god forbid! The Supreme house of justice will take decisions and establish laws through the inspiration and confirmation of the holy Spirit, because it is in the safekeeping and under the shelter and protection of the Abhá beauty, and obedience to its decisions is a bounden and essential duty and an absolute obligation, and there is no escape for anyone.

(published in Wellspring of Guidance: Messages 1963–1968

(wilmette: b ahá’í p ublishing T rust, 1976), pp. 8–5)

The house of justice trusts that these comments will assist you to arrive at the clarification you seek, and it assures you of its prayers in the holy Shrines on your behalf.

with loving b ahá’í greetings,

for Department of tHe secretariat^{283.7}

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Arrests, Imprisonment, and Confiscation of Property
of Bahá’ís in Iran

[signed: The Universal House of Justice]